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Privacy Notice.

Last updated: 16 December 2024

This Privacy Notice describes how your personal data, including sensitive data, are collected and processed, related to the use of your Hearing Devices ("HD"). In this context, this Privacy Notice covers the processing of your personal data carried out via the "myPhonak" Application ("Mobile App") with all related technology to access or otherwise use the Mobile App as described below. The processing of your personal data comply, according to your country, with local law requirements, including the Swiss Federal Data Protection Act ("FDPA"), the Regulation (EU) 2016/679 of the European Parliament and of the Council of 27 April 2016 ("GDPR"), or the Health Insurance Portability and Accountability Act of 1996 ("HIPAA") for your personal data qualified as Protected Health Information.

This Privacy Notice may be updated from time to time. In this case, we will inform you that this Privacy Notice has been modified and the "last updated" date on top of this document will be modified. We recommend that you periodically review the latest version of this Privacy Notice.

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agree and consent to it):

- Manage your customer account information: your account information (first name (optional), last name (optional), email, password, country, phone number), medical device UID, medical device type and settings. Please note that, once your account is created, if you later decide to change your country selection, this will not impact the data storage, which means that data residency will still be the one defined initially. Also note that if you chose to delete your account, medical device information cannot be deleted.
- Allow you to access and see your health data in the Mobile App* – this processing requires you to create an account and login: health data (counted steps, activity levels, wearing time, time in different acoustic environments, time of streaming, heart rate, distance, goals for steps and wearing time, charging periods, calories), HD information (e.g., serial number and hearing side), your account information (first name, last name, email, password, country, phone number).
- Collect and combine personal data and information on usage and identification of hearing devices, as well as previously obtained data under the purpose of our legal obligation as a manufacturer, for further product improvement, research and claims* – this processing requires you to create an account and login: health data (age, weight, height, gender, counted steps, activity level, wearing time, charging periods, time in different acoustic environments, time of streaming, heart rate, distance, goals for steps and wearing time, calories), HD information (e.g., serial number and hearing side).
- Understand your demographics and preferences in using the Mobile App: Your location such as City/Region/Country (Sonova will not store your location

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- Troubleshooting in case of need via the sharing of log files

**For those processing, categories of personal data collected may differ according to your HD. For more information about your HD functionalities, you can contact your HCP or Sonova at the email address provided at the end of this document.*

Based on the performance of your contract (those processing are mandatory as they are necessary to improve your hearing experience and to ensure the proper functioning of your HD and the Mobile App):

- Ensuring your HD and Mobile App are functioning as intended and allow you to make adjustments to your HD: data stored in your HD by your HCP (date of birth, age, gender, audiogram), HD product identification (product name, HD type, HD version, main brand, private label, price level, battery type, device type, device options, firmware version, hardware version), personal adjustment settings (including custom fitting adjustments and custom settings, if any).

Based on our legal obligation (under the Medical Device Regulation, we, as a manufacturer, must set up a monitoring system that enables the collection and analysis of data about the quality, performance and safety of our medical devices):

- Monitor the performance of the HD and mobile Application and ensure correct operation and security (post-market surveillance): connection with HD (e.g., connection status, medical device UID, medical device type and settings, discovery information, pairing information, detailed connection information), charging periods, usage periods, interval logging, data about Mobile App crashes, HD event and exceptions error logs, technical log of Mobile App events

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product information from service centers.

Your HCP processes your personal data for the following purpose, based on the performance of your contract:

- Fit your HD remotely through (RID) Based Remote Support service: data stored in your HD (date of birth, age, gender, audiogram), HD product identification (product name, HD type, HD version, main brand, private label, price level, battery type, device type, device options, firmware version, hardware version), Bluetooth device name, serial number, HD pairing key, HD Usage Logging (boot counter, adjustments, operation time since first/latest fitting, usage time per acoustic situation, operation time, corrections, number of re-charging cycles), HD fitting configuration, and other operational data (your service registration ID or service registration status, IP address, RID number store on the HD).

3. How we share your personal data

Your personal data will be processed according to the instructions we provide to our employees who have received the necessary training in data protection and are subject to an obligation of confidentiality.

Your personal data may also be disclosed to:

- Other companies in our group of companies, such as our subsidiaries, all of which are required to protect personal data in accordance with applicable privacy and data protection laws;
- Our business partners, contractors and third-party service providers. These third parties only process personal data that are strictly necessary for the services

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- Apple Inc. (United States): for iOS mobile phone and “enable user to locate lost HD” processing, data is sent to Apple to convert a location to a street address.
- Salesforce, Inc. (United States, European Union): provisions of customer account and administering the account database.
- Twilio Inc., Xirsys (data are not stored persistently and are processed as a relay server based on the location of the call participants and the IP address ranges identified – for more information please see: https://www.twilio.com/docs/stun-turn/regions or https://docs.xirsys.com/?pg=api-intro): manage and maintain the WebRTC service and provide technical support.
- Google Ireland Limited - Google Analytics (Ireland): analytics.
- Google Ireland Limited - Google Firebase (Ireland): crash analytics, remote configuration and push notifications.
- SurveyMonkey Inc. (United States, Ireland): used to collect user satisfaction surveys.
- Elasticsearch micearch B.V (the Netherlands): logging ingestion for monitoring, security and observability purposes.
- Cloudflare Inc. (United States, European Union): used to verify whether user is a bot or human in order to prevent malicious bot activity.
- LiveSwitch (United States): provides critical video infrastructure for engaging and interactive real-time communications on the web

Before we disclose any personal data to other third parties than those listed above, we will explicitly ask you for your consent. However, if we are obliged to disclose personal data without your consent, we will only disclose personal data that are strictly necessary for that purpose to fulfil our legal obligations.

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- depending on the country of the importing third party, take additional measures such as a transfer impact assessment.

5. How long we keep your personal data

Sonova AG will retain your personal data for a minimal period proportional to the time required to fulfil the purposes outlined in Section 2. For example, relevant personal data will no longer be retained if you delete your account or if our contractual obligations are fulfilled. In the event applicable law or other regulations require a longer retention period, we will apply the longer retention period in order to fulfill our legal obligations.

Your personal data processed by HCPs will be retained in accordance with applicable laws. For more information on their specific retention periods, please contact your HCP.

6. Your legal rights

Within the framework of the collection and processing of your personal data, and as per applicable law, you may have the right to request access, rectification, erasure of your personal data, or restriction of processing. In addition, you may object to the processing, request data portability and withdraw your consent at any time. According to your country, you may have other rights such as providing instructions for how your personal data should be processed posthumously. Under HIPAA you may also have the right to request an accounting of disclosures of your personal data, and the right to receive a paper copy of this notice upon written request.

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The Mobile App may contain links to other websites or content belonging to or originating from third parties or links to websites and features in banners or other advertising. Such external links are not investigated, monitored, or checked for accuracy, adequacy, validity, reliability, availability or completeness by Sonova. Therefore, please note that the Mobile App does not disclose any personal data to those third parties and their websites and that we are not responsible in any way of personal data processed by them.

For example, this is the case with the Health Resources tab which gives you access to a list of 3rd party health-oriented applications that are therefore not under Sonova's responsibility.

8. How to contact us

In the event of questions about this Privacy Notice, or the processing of your Personal Data, please contact our Data Privacy Team at privacy@sonova.com.

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PHONAK life is on

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